

1.

CASE #	CASE NAME	HEARING NAME
CVPS2506602	NAVY FEDERAL CREDIT UNION VS SIMMONS	MOTION TO ENFORCE SETTLEMENT AND ENTER JUDGMENT PURSUANT TO § 664.6 BY NAVY FEDERAL CREDIT UNION

Tentative Ruling: No tentative ruling. The motion does not comply with Local Rule 3316C. Parties wishing to argue the motion are ordered to appear. Appearance may be telephonic.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2507964	WELLS FARGO BANK, N.A. VS TOLEDO	PLAINTIFF'S MOTION FOR JUDGMENT ON THE PLEADINGS ON COMPLAINT OF WELLS FARGO BANK, N.A.

Tentative Ruling: Plaintiff Wells Fargo Bank, N.A.'s unopposed motion for judgment on the pleadings is GRANTED, as is the request for judicial notice filed in support thereof.

A motion for judgment on the pleadings is properly granted in a plaintiff's favor if "the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint." (CCP 438(c)(1)(A).) In ruling on the motion, the court is confined to the face of the pleadings and matters required to be judicially noticed. (CCP 438(d).)

Here, plaintiff's complaint alleges causes of action for breach of contract (written) and breach of contract (implied in fact). These causes of action require plaintiff to show: (1) the existence of a contract, (2) its performance under the contract or excuse for nonperformance, (3) defendant Cirennia Toledo's breach, and (4) resulting damages. (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.) The complaint and matters judicially noticed, including the discovery requests deemed admitted for all purposes in this litigation (see *Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 485), show all four elements: the existence of a credit card agreement between plaintiff and defendant; plaintiff's performance of its duties under the agreement, including issuing a card to defendant and providing monthly statements; defendant's breach of the agreement by failing to make the required payments; and damages in the amount of \$6,006.58. The court therefore orders entry of judgment in favor of plaintiff and against defendant.

All future hearing dates are VACATED.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2509609	WELLS FARGO BANK, N.A. VS CARIAS	PLAINTIFF'S MOTION FOR ORDER TO DEEM MATTERS ADMITTED

Tentative Ruling: Plaintiff Wells Fargo Bank, N.A.'s unopposed motion for an order deeming matters admitted is GRANTED. Requests 1 through 11, inclusive, in plaintiff's requests for admissions are deemed admitted for all purposes in this litigation.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2600163	SOLDIS VS MERCEDES-BENZ USA, LLC	MOTION FOR PROTECTIVE ORDER BY MERCEDES-BENZ USA, LLC

Tentative Ruling: No tentative ruling. The motion does not comply with Local Rule 3316C. Parties wishing to argue the motion are ordered to appear. Appearance may be telephonic.